

# **TENTATIVE RULING(S) FOR June 25, 2026**

## **Department S37 – Judge Winston Keh**

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**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

**CIVSB2326743**

**CONNORS VS HARPER**

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### **TENTATIVE RULING(S):**

On October 25, 2023, Plaintiff Alexis Connors, individually and as Tobias Fountain's successor in interest, filed a complaint against Karen Harper and Foster Family Home and Small Family Home Insurance Fund (FSH) alleging causes of action for: (1) wrongful death [Harper]; (2) survival claims [Harper]; (3) negligence [all Defendants]; and (4) declaratory relief [FSH].

Before the Court is Defendant Karen Harper's motion for leave to file a cross-complaint against Plaintiff and FSH to allege causes of action for implied indemnity, comparative indemnity, apportionment of fault, and declaratory relief. FSH opposes, but Plaintiff does not oppose. Harper does not reply (due May 25, 2026).

Harper explains that she did not file the cross-complaint with her answer because there was an ongoing criminal investigation against her at the time and the cross-complaint would risk dismissal when she asserted her Fifth Amendment right against self-incrimination during discovery. Harper states that now that the statute of limitations has run on any criminal claims, she seeks to allege indemnity claims in this action.

The declaration of Michael J. La Ciento states that the proposed cross-complaint is attached to Harper's motion as Exhibit A. However, the proposed cross-complaint was not attached to the motion preventing a full analysis. Thus, the Court ordered Harper's counsel to submit the missing exhibit and continued the hearing to June 25, 2026. The Court has now reviewed the proposed cross-complaint.

#### Legal Standard

A defendant shall file a cross-complaint against any party who filed a complaint or cross-complaint against him before or at the same time as the answer to the complaint or cross-complaint. (Code Civ. Proc., § 428.50, subd. (a).) Any other cross-complaint may be filed at any time before the trial date is set. (Code Civ. Proc., § 428.50, subd. (b); *see also Loney v.*

*Superior Court* (1984) 160 Cal.App.3d 719, 722-723 [noting that the assignment of the first trial date, even if vacated later, is the logical point to cut off the right to file cross-complaints without permission of the court].)

Compulsory cross-complaints are governed by Code of Civil Procedure section 426.10, et. seq. Compulsory cross-complaints arise when a named defendant has a related cause of action against the plaintiff. (Code Civ. Proc., §§ 426.10, subd. (c), 426.30, subd. (a).) A related cause of action means a cause of action that "arises out of the same transaction, occurrence, or series of transactions or occurrences" as the complaint. (Code Civ. Proc., § 426.10, subd. (c).) A cause of action arises out of the "same transactions or occurrences" if the factual or legal issues are logically related. (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 965 (*Align Technology*) ["[T]he 'logical relationship' inquiry is the preferred approach in ascertaining whether a claim arises out of the same transaction or occurrence so that it constitutes a compulsory counterclaim...."].) To be considered a compulsory cross-complaint, the related

cause of action must have existed at the time defendant served its answer to the complaint. (*Id.* at p. 970.)

A defendant who fails to file a compulsory cross-complaint before or at the time of filing an answer must apply to the court for leave to file a cross-complaint. (Code Civ. Proc., § 426.50.) Generally, the court must grant leave to file a compulsory cross-complaint whether the failure to timely file the cross-complaint was due to oversight, inadvertence, mistake, neglect, or another cause, so long as the party making the motion has not acted in bad faith or no substantial prejudice to the adverse party is shown. (*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-100; Code Civ. Proc., § 426.50.) Judges must liberally construe the provisions of Code of Civil Procedure section 426.50 to avoid forfeiture of causes of action. A strong showing of bad faith is required to support an order denying leave to file a compulsory cross-complaint. (*Foot's Transfer & Storage Co. v Superior Court* (1980) 114 Cal.App.3d 897, 902-903 (*Foot's Transfer & Storage*).)

A cross-complaint that is not compulsory is permissive. (*ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd.* (2016) 5 Cal.App.5th 69, 84.) There are no compulsory cross-complaints against parties other than plaintiff. (Weil & Brown, *Calif. Prac. Guide: Civil Proc. Before Trial* (2025) § 6:524.) Cross-complaints filed against co-defendants or third parties not yet involved in the action are always “permissive.” (*Insurance Co. of North America v. Liberty Mutual Ins. Co.* (1982) 128 Cal.App.3d 297, 303.)

A defendant must file a permissive cross-complaint against the plaintiff (i.e., not related to the events at issue in the complaint) at the time the defendant files an answer to the complaint. (Code Civ. Proc., § 428.50, subd. (a).) All other permissive cross-complaints may be filed at any time before the first trial date is set. (Code Civ. Proc., § 428.50, subd. (b).) When a permissive cross-complaint is not filed within these time frames, leave of court is required. (Code Civ. Proc., § 428.50, subd. (c).)

With respect to a permissive cross-complaint, “leave may be granted in the interest of justice at any time during the course of the action.” (Code Civ. Proc., § 428.50, subd. (c).)

### Merits of Harper's Motion

To the extent Harper's cross-complaint seeks indemnity against Plaintiff, the cross-complaint is compulsory. Plaintiff does not oppose Harper's motion and there is no evidence of Harper's bad faith failure to file the cross-complaint earlier.

FSH opposes Harper's motion arguing that Harper erroneously asserts her cross-complaint is also compulsory against FSH. FSH asserts it has not filed any claims against Harper, so her cross-complaint is only permissive as to FSH. FSH argues by mischaracterizing her cross-complaint, Harper fails to demonstrate that allowing the cross-complaint against FSH is "in the interest of justice."

FSH further argues that it has incurred substantial costs in discovery that would be wasted if Harper is now able to change her discovery answers that asserted her Fifth Amendment rights. FSH also argues that it has relied on Harper's assertion of her Fifth Amendment rights and by allowing Harper to file the cross-complaint, FSH will need to retake Plaintiff's deposition and take additional discovery. FSH argues Harper should be required to pay for any such discovery. FSH does not explain how denying Harper leave to file her cross-complaint here will result in costs savings if Harper is required to pursue a separate action against FSH and FSH is required to take the same discovery. It appears to be in the interest of justice to have Harper's claims adjudicated in the same action.

### RULING

For all the reasons stated above, the Court GRANTS Harper's Motion in its entirety. The proposed Summons and Cross-Complaint attached to Harper's motion are deemed filed and served on June 25, 2026.

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**CIVSB2502291**

**SAUNIER VS AGUAYO**

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### **TENTATIVE RULING(S):**

Before the Court is Defendant Aguayo's motions to compel further responses to (1) special interrogatories, set one, (2) form interrogatories, set one, and (3) request for production of documents, set one. Defendant contends that a meet and confer letter was sent on January 21, 2026, and that she did not receive any response by January 28, 2026, the date Defendant put in her meet and confer letter as the deadline to respond. (Aguayo Decl. ¶ 4.)

In opposition, Plaintiff claims the motions are moot and that Defendant did not engage in a good faith meet and confer. Plaintiff asserts that on February 2, 2026, she reached out to Defendant and asked for a two week extension to provide supplemental responses. She asserts that